

JACKSON, J., dissenting

proof at trial. And even before trial, in a motion to dismiss the indictment, he might make any number of legal arguments; he can assert, for example, that the Government's charging document does not give adequate notice of the charge against him or that the law he has been accused of violating is unconstitutionally vague. See *Hamling v. United States*, 418 U.S. 87, 117 (1974); *United States v. Davis*, 588 U.S. 445, 451 (2019). He might further claim that the law is unconstitutional as applied to his particular conduct. See *United States v. O'Brien*, 391 U.S. 367, 376 (1968). And he might maintain that his conduct, even if proved, does not violate the law at issue. See, e.g., *Fischer v. United States*, 603 U.S. 480, 484–485 (2024).

The defendant may also raise, and attempt to prove, affirmative defenses that “excuse conduct that would otherwise be punishable.” *Dixon v. United States*, 548 U.S. 1, 6 (2006). Generally speaking, affirmative defenses are determinations (often adopted by legislation) that certain conduct otherwise punishable by law is justified. This might be the case, for example, when the Legislature determines that, under specified circumstances, the societal harm particular conduct causes “is outweighed by the need to avoid an even greater harm.” 1 P. Robinson, *Criminal Law Defenses* §24(a) (1984) (Robinson).

Importantly, a defense is *not* an immunity, even though a defense can likewise result in a person charged with a crime avoiding liability for his criminal conduct. Consistent with our foundational norms, the individual accountability model adheres to the presumption that the law applies to all and that everyone must follow it; yet, the model makes allowances for recognized defenses. One such defense is the special privilege that Government officials sometimes invoke when carrying out their official duties.¹

¹ See R. Perkins & R. Boyce, *Criminal Law* 1093 (3d ed. 1982) (“Deeds which otherwise would be criminal, such as taking or destroying property, taking hold of a person by force and against his will, placing him in con-